

OREGON STATE HOSPITAL

POLICY

SECTION 8: Safety, Security, Emergency Management **POLICY: 8.044**

SUBJECT: Contraband, Prohibited Items,
Limited Access Items

POINT PERSON: Director of Security

APPROVED: Sara Walker, MD  **DATE: JANUARY 15, 2025**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☒ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) strives to provide a safe treatment environment for patients where contraband requires specific actions when discovered, which are established in this policy and attached procedures.
- B. This policy applies to all staff and visitors on OSH property; this also applies to patient care environments which may be on-grounds or off-grounds.

II. POLICY

- A. Supplying contraband into OSH may result in a Class C felony charge. Signs indicating contraband requirements must be posted at each entrance.
- B. Any person who enters OSH facilities, including the person's belongings, is subject to search.
- C. Per Oregon Administrative Rule (OAR) 309-108-0020, a patient must be informed of this policy upon admission.
- D. If a person supplies contraband, or a patient knowingly makes, obtains, or possesses contraband, staff must immediately contact Security and follow Procedures A.
- E. Staff should consult Attachment C for related OSH Policies and Procedures that must be considered in conjunction with this policy in more specific scenarios, such as patient property, admissions, or purchase requests.

1. All items entering patient care areas must follow appropriate procedure for acquisition and use.
- F. Prohibited items are not allowed in patient possession and must be handled as contraband as instructed in this policy's procedures.
1. An exception to this is when patients are attending treatment mall, classes, or vocational work where specific prohibited items are approved for use within the designated area and under staff supervision.
 2. Staff must not provide prohibited items to a patient outside the provisions of this policy.
 3. Staff must secure found prohibited items and follow Procedures A. Security, and law enforcement if applicable, must be consulted before an item may be stored, disposed of, or destroyed.
- G. Limited access items must only be used in the settings and for the purposes established in the attachments of this policy. Any limited access item that is found outside of these parameters must be treated as a prohibited item.
- H. Staff may transport personal items considered to be prohibited in patient care areas if the item is listed in Attachment B. The item(s) must remain in staff's secure possession at all times.
- I. Items that do not appear on Attachment A may be allowed unrestricted on units within reasonable amounts unless contraindicated by the patient's treatment care plan, state or federal law, other regulation, or other OSH policy. However, Attachment A is not all-inclusive and OSH may restrict items that are not specifically listed as needed.
- J. An accommodation may be requested for religious or native practices; see also OSH Policies 7.011 "Faiths Beliefs, and Practices," and 7.017 "Native Artifacts and Property."
- K. See Attachment C for related policies, for example 4.018 "OSH Purchase and maintenance," on how to request a product that may be eligible for an exception, such as aromatherapy products or medical devices (See also Attachment A for more information).
- L. If approved, an item exception or accommodation must be documented in the patient's treatment care plan.
1. Refer to applicable Nursing protocol regarding documentation process.

- M. A patient's IDT may restrict an item that is currently unrestricted at OSH or may require extra supervision of the patient when using an item, based on the patient's individual needs, safety, and treatment care plan.
 - 1. A more restrictive limitation must be documented in the patient's treatment care plan.
 - 2. A more restrictive limitation on a patient's access must be reviewed by the patient's IDT at least every 30 days. The review must be documented and must include a rationale for continuing the more restrictive limitation.
- N. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- O. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Chain of custody" means an unbroken, documented trail of accountability that is initiated and maintained by staff that proves the physical security, including movement and location, of an item.
- B. "Contraband" means any controlled substance, drugs not prescribed to the patient, drugs not prescribed or authorized by OSH, drug paraphernalia, weapons, unauthorized currency, or prohibited items.
- C. "Criminal act" or "alleged criminal act" means an act or crime actually or allegedly committed by a person which violates a law and is punishable by the state or federal government. Such acts may include, but are not limited to, assault, vandalism, theft, threat to staff, supplying contraband into OSH, or suspicious activity on an OSH campus.
 - 1. An "alleged criminal act" should be considered to have occurred if:
 - a. a staff member has reasonable cause to believe a crime has been committed; or
 - b. information has been reported to a staff member which, if true, would constitute a crime.
- D. "Drug" means:

1. Substances recognized as drugs in the official United States Pharmacopoeia, official Homeopathic Pharmacopoeia of the United States or official National Formulary, or any supplement to any of them;
 2. Substances intended for use in the diagnosis, cure, mitigation, treatment or prevention of disease in humans or animals;
 3. Substances (other than food) intended to affect the structure or any function of the body of humans or animals, including but not limited to vitamins, supplements, dietary powders, synthetic cathinones, synthetic cannabinoids; or
 4. Substances intended for use as a component of any article specified in paragraph (1), (2) or (3) of this subsection; however, the term does not include devices or their components, parts or accessories.
- E. "Drug Paraphernalia" means all equipment, products and materials of any kind that are marketed for use or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling or otherwise introducing into the human body a controlled substance in violation of ORS 475.752 to 475.980.
- F. "Excess Personal Property" means property which cannot be stored in the designated storage in the patient's room or personal storage space on the unit.
- G. "Hospital Level of Care (HLOC)" means the treatment and services specific to what only a psychiatric hospital can perform and are not able to be performed by community placements and/or services outside of the hospital.
- H. "Level of care" means the intensity of psychiatric or medical care provided to a patient by OSH and differentiated by "hospital level of care" or "secure residential treatment facility (SRTF) level of care".
- I. "Limited Access Item" means an item that could pose a safety or security risk in the possession of a patient but is permitted for a set duration of time with the prior authorization of OSH staff and, if applicable, with the direct supervision of OSH staff. A limited access item becomes a prohibited item if the patient possesses or uses the item outside of the scope of the authorization or without OSH staff supervision if required.
- J. "OSH Property" includes OSH buildings, surrounding grounds, and parking lots. Personally owned vehicles parked on OSH property are not considered part of OSH property.

- K. "On-grounds" means any area outside the secure perimeter (e.g., outside a sallyport), while still on the OSH campus (Salem or Junction City).
1. On-grounds areas on the Salem campus include the Empowerment Center; Kirkbride building floors 2, 3, and 4; the OSH Museum; Cottages, tennis court; and the OSH disc golf courses.
 2. On-grounds areas on the Junction City campus include the Education and Development Department classrooms, National Alliance on Mental Illness (NAMI) office, administration second-floor areas, community gardens, NAMI memorial garden, disc golf course, fruit orchard, and the access road.
- L. "Patient care area" means any place at OSH where a patient may be examined or treated, may have unrestricted or supervised access, or may spend time, which includes, but is not limited to, units, treatment malls, quads, ballfield, etc.
- M. "Patient care environment" means patient care areas, as well as environments where patients are on outings (cottages, etc.) outside the secure perimeter.
- N. "Prohibited item" means:
1. Alcohol;
 2. Possession of drugs in the patient's room without authorization by OSH;
 3. Any item that reasonably could be used to escape or leave the hospital without authorization;
 4. Food stored in the patient room or in the patient's storage in the patient property room;
 5. Any item in the possession of a patient who is prohibited from possessing or using that item in their treatment care plan because it is considered detrimental to their treatment;
 6. Excess personal property;
 7. Any limited access item in the possession of a patient that exceeds the scope of the authorization or is not being supervised by OSH staff as required; or,
 8. Any item that could pose a safety or security risk for the hospital.
- O. "Reasonable amount" is defined as property that fits into the storage areas assigned to patients: the storage area in the patient's room and one clear plastic bin in the Patient Property room, food items need to fit within snack bin

- P. "Reasonable cause" or "reasonable suspicion" may be used interchangeably and means an OSH staff member has knowledge or notice of facts or circumstances and the rational inferences drawn therefrom that would lead a reasonable and experienced OSH staff member to come to a conclusion.
- Q. "Secure perimeter" means restricted high-security buildings, areas, and quads within the sally port entrances and exits at the state hospital.
- R. "Secure possession" means an item is transported in staff's possession to a locked area such as a locker or a locked staff area and includes the time period when the item is secured in the locked area.
- S. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- T. "Unauthorized Currency" means paper money and coins in the possession of a patient in an amount or in a location not authorized by OSH.
- U. "Unrestricted item" means any item that is not contraband that has been authorized by OSH for the patient's use or possession.
- V. "Weapon" means any item that can be used or modified to be used to harm the patient or others, including but not limited to guns, knives, improvised pointed or bladed instrument, and pepper spray.
- W. "Workplace violence" means behavior that to a reasonable person is intimidating, hostile, threatening, violent or abusive. Such behavior may include:
 - 1. Threats and threatening behavior such as physical, verbal, or written acts that express or are reasonably perceived to imply intent to cause physical or psychological harm against a person or persons, or cause damage to property.
 - 2. Statements, gestures, or expressions that communicate a direct or indirect threat of physical or psychological harm.
 - 3. Violent behavior such as carrying out threats or threatening behavior.

IV. PROCEDURES

- Procedures A Staff Response to Contraband, Prohibited Items, Limited Access Items

V. ATTACHMENTS

- Attachment A OSH Contraband and Limited Access Items
- Attachment B OSH Staff Personal Items Access List

Attachment C Policy & Procedure Reference Sheet

VI. RELATED OSH POLICIES AND PROTOCOLS

- 1.003 Incident Reporting
- 3.002 Electrical Equipment and Resource Conservation
- 4.010 Patient Funds
- 4.018 OSH Purchase and Maintenance
- 5.001 Drug and Alcohol-Free Workplace
- 5.007 ADA and Reasonable Accommodation in Employment
- 6.006 "On-grounds Off-grounds Movement"
- 6.030 Electronic Device and Internet Access
- 6.047 Patient Food
- 6.058 Admissions
- 7.001 Mail and Packages for Patients
- 7.002 Media Access for Patients
- 7.005 Patient Rights
- 8.014 Room Unit and Treatment Mail Searches
- 8.019 Staff Response to Alleged Criminal Acts and Contraband
- 8.024 Tool and Sharp Security
- 8.026 Visitors to Patients
- 8.027 Weapons on Campus
- 8.033 Workplace Violence Prevention
- 8.037 Patient Property and Valuables
- 8.041 Patient Personal Searches

VII. REFERENCES

- Department of Administrative Services. Weapons in the workplace, 50-010-05. Author.
- Department of Administrative Services. Violence-Free Workplace, 50-010-02. Author.
- Oregon Administrative Rules §§ 309-108-0000 — 309-108-0020.
- Oregon Revised Statute § 162.135.

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Oregon Revised Statute § 162.185.

Oregon Revised Statute 426.385.